

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO. 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
HEATHER GUNN, JANICE
HUGHES, DAKOTA THOMAS,
ELIAS VELASQUEZ and YUSEF
ABDUL-JAMI,**

Defendants.

**DEFENDANTS’ MOTION TO DISMISS FOURTH AMENDED
COMPLAINT AND INCORPORATED MEMORANDUM OF LAW**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC (“Amentum”), CLARENCE XANDER (“Xander”), JANICE HUGHES (“Hughes”), HEATHER GUNN (“Gunn”), DAKOTA THOMAS (“Thomas”), ELIAS VELASQUEZ (“Velasquez”), and YUSEF ABDUL-JAMI (“Abdul-Jami”) (collectively, “Defendants”), by and through undersigned counsel and pursuant to Fed. R. Civ. P. 12(b)(6), hereby move to dismiss the Fourth Amended Complaint (Doc. 27) filed by Plaintiff, DEBRA NELSON (“Plaintiff”), for failure to state a claim.

I. INTRODUCTION

Since filing her initial Complaint on August 26, 2025, Plaintiff has had many bites at the apple to plead a viable claim against any one of the seven defendants she named in this lawsuit. Plaintiff, however, has not yet done so. A cursory review of the factual allegations in the Fourth Amended Complaint leads to the clear conclusion that Plaintiff's allegations continue to miss the mark. Accordingly, the Fourth Amended Complaint should be dismissed for failure to state a claim.

II. PROCEDURAL BACKGROUND

Plaintiff filed her initial Complaint on August 26, 2025. (Doc. 1) The Court struck that Complaint as an impermissible shotgun pleading on August 28, 2025. (Doc. 4) Plaintiff then filed her First Amended Complaint on September 9, 2025. (Doc. 5) The Court again struck that pleading as both an impermissible shotgun pleading and violative of the page limits on September 17, 2025. (Doc. 6) On September 22, 2025, Plaintiff filed a Second Amended Complaint. (Doc. 7)

Thereafter, on October 24, 2025, Plaintiff filed a Motion for Leave to File Third Amended Complaint together with the proposed Third Amended Complaint. (Docs. 16-17) The Third Amended Complaint, however, was deficient in that it improperly incorporated by reference factual allegations from other unspecified documents and failed to clearly identify the parties against whom each count was asserted. The undersigned counsel conferred with Plaintiff and shortly after, on

November 5, 2025, Plaintiff filed a Revised Third Amended Complaint. (Doc. 18) Although it was Defendants' position the Revised Third Amended Complaint failed to state any viable claim, Defendants notified the Court that they did not oppose Plaintiff's Motion for Leave with respect to the Revised Third Amended Complaint given the liberal standard generally applicable to motions for leave to amend the pleadings. (Doc. 19) As a result, the Court granted Plaintiff's Motion for Leave to File the Revised Third Amended Complaint on November 7, 2025. (Doc. 20)

The following day, November 8, 2025, Plaintiff notified the undersigned counsel that she intended to file a Supplemental Complaint adding an additional count. Plaintiff's Supplemental Complaint Adding Count XI – Retaliation for Protected Activity (Post-Deposition Termination) was filed on November 13, 2025. (Doc. 22) That same day, the Court struck Plaintiff's filing and directed Plaintiff to submit a Motion for Leave to file an amended pleading along with the proposed pleading. (Doc. 23)

On November 17, 2025, Plaintiff filed a Motion for Leave to File Fourth Amended Complaint and a proposed Fourth Amended Complaint. (Docs. 24-25) On November 24, 2025, Plaintiff filed a second Motion for Leave to File Fourth Amended Complaint and proposed Fourth Amended Complaint. (Docs. 26-27) As before, Defendants did not oppose Plaintiff's Motion for Leave with respect to the latest iteration of the Fourth Amended Complaint given the liberal standard

generally applicable to motions for leave to amend the pleadings. Accordingly, the Court granted Plaintiff's Motion on November 25, 2025 and accepted the Fourth Amended Complaint filed at Doc. 27. (Doc. 28)

III. SUMMARY OF ARGUMENT

Despite submitting *eight versions* of her complaint to the Court, Plaintiff's *Fourth Amended* Complaint remains deficient. Specifically, Plaintiff's claims should be dismissed for the following reasons:

- The Fourth Amended Complaint is a shotgun pleading.
- The Fourth Amended Complaint fails to allege exhaustion of administrative remedies with respect to the claims under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e, *et seq.* ("Title VII"), in Counts I, II, III, and XI.
- Count I fails to state a claim of gender discrimination under Title VII because (1) it fails to plead an actionable adverse employment action, and (2) it fails to plead any factual allegations that any purported conduct was taken because of Plaintiff's gender.
- Count II fails to state a claim of retaliation under Title VII because (1) it fails to plead a materially adverse employment action, and (2) it fails to plead any factual allegations that Plaintiff engaged in any statutorily protected conduct or a causal connection between any purported statutorily protected conduct and a materially adverse employment action.
- Count III fails to state a claim of hostile work environment because (1) it does not allege factual allegations of any conduct that was sufficiently severe or pervasive to alter the terms and conditions of Plaintiff's employment and create a discriminatorily abusive working environment, and (2) it fails to make any connection between Plaintiff's gender or alleged protected conduct and the alleged harassment.
- Count IV fails to state a claim of defamation because it does not allege publication to a third party.

- Count V fails to state a claim of intentional infliction of emotional distress because the allegations do not meet the “outrageous conduct” standard under Florida law.
- Count VI fails to state a claim of civil conspiracy because it fails to allege any facts to show an unlawful act or underlying tort or any agreement between the defendants named in Count VI.
- Count VII fails to state a claim of negligent supervision because it does not allege an actionable tort underlying the claim, which is a necessary element of the claim.
- Count VIII fails to state a claim because “violation of public policy” is not a viable claim under Florida law and it does not identify the “applicable whistleblower protections” under which this claim is purported to be brought.
- Count IX fails to state a claim of breach of contract because Plaintiff did not enter into any valid and enforceable contract with the defendants named in Count IX.
- Count X fails to state a claim because “violation of public policy” is not a viable claim under Florida law and it does not properly plead a whistleblower claim.
- Count XI fails to state a claim for retaliation under Title VII because it fails to plead any factual allegations that Plaintiff engaged in any statutorily protected conduct or a causal connection between any purported statutorily protected conduct and her termination.

IV. STANDARD FOR MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM

A complaint must contain “a short and plain statement of the claim showing that the pleader is entitled to relief.” Fed. R. Civ. P. 8(a)(2). Importantly, the complaint must “give the defendant fair notice of what the plaintiff’s claim is and the grounds upon which it rests.” *See Bryant v. Downs*, No. 6:09-cv-1670-Orl-28KRS, 2010 U.S. Dist. LEXIS 63919, at *2 (M.D. Fla. July 29, 2010) (citing

Tellabs, Inc. v. Makor Issues & Rights, Ltd., 551 U.S. 308, 319 (2007)). “To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to ‘state a claim to relief that is plausible on its face.’” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Id.* at 678 (citation omitted).

“Where a complaint pleads facts that are ‘merely consistent with’ the defendant’s liability, it ‘stops short of the line between possibility and plausibility of entitlement to relief’” and should be dismissed. *Iqbal*, 556 U.S. at 678 (quoting *Twombly*, 550 U.S. at 557). Indeed, “[l]egal conclusions without adequate factual support are entitled to no assumption of truth.” *Mamani v. Berzain*, 654 F.3d 1148, 1153 (11th Cir. 2011) (citations omitted). The alleged facts, being “stripped of all legal conclusion, must make a claim for relief not merely *possible*, but *plausible*.” *Turner v. Williams*, 65 F.4th 564, 577 (11th Cir. 2023) (citing *Twombly*, 550 U.S. at 570). “‘Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice’ to survive a Rule 12(b)(6) motion.” *Id.* (quoting *Iqbal*, 556 U.S. at 678). In fact, “courts may infer from the factual allegations in the complaint ‘obvious alternative explanations,’ which suggest lawful conduct rather than the unlawful conduct the plaintiff would ask the court to infer.”

Cwelt-2008 Series 1045 LLC v. PHH Corp., No. 1:20-cv-20334-BLOOM/Louis, 2020 U.S. Dist. LEXIS 91899, at *11 (S.D. Fla. May 27, 2020) (quoting *Am. Dental Ass’n v. Cigna Corp.*, 605 F.3d 1283, 1290 (11th Cir. 2010)).

V. THE FOURTH AMENDED COMPLAINT IS AN IMPROPER SHOTGUN PLEADING.

Rather than setting forth a “short and plain statement” of each claim, the Fourth Amended Complaint is replete with conclusory assertions, vague allegations, and immaterial facts that are not tied to any specific cause of action. Additionally, there are 12 exhibits (totaling 27 pages) attached to the Fourth Amended Complaint but not included or referenced in any particular Count of the Fourth Amended Complaint. (Doc. 27-1) Moreover, Plaintiff does not present each claim in separate, numbered paragraphs limited to a single set of circumstances. Instead, the Fourth Amended Complaint improperly incorporates allegations by reference (*see, e.g.*, Counts IV, V, IX, and X) and leaves Defendants to guess which allegations are intended to support which Counts. The deficiencies are not minor technicalities but fundamental failures to comply with the Federal Rules of Civil Procedure. The Fourth Amended Complaint deprives Defendants of fair notice of the claims and the grounds upon which they rest, thereby impeding the ability to prepare a responsive pleading or assert their defenses and affirmative defenses. This is precisely the type of shotgun pleading the Eleventh Circuit has repeatedly condemned. *See Weiland v. Palm Beach Cnty. Sheriff’s Office*, 792 F.3d 1313, 1322-23 (11th Cir. 2015).

Accordingly, the Fourth Amended Complaint should be dismissed as an impermissible shotgun pleading.

VI. PLAINTIFF’S CLAIMS UNDER TITLE VII IN COUNTS I, II, III, AND XI SHOULD BE DISMISSED FOR FAILURE TO PLEAD EXHAUSTION OF ADMINISTRATIVE REMEDIES.

Plaintiff purports to bring claims under Title VII in Counts I, II, III, and XI. These claims should be dismissed because Plaintiff fails to plead that she exhausted administrative remedies before filing her Title VII claims.

Before filing suit under Title VII, a plaintiff must first timely exhaust administrative remedies by filing a charge of discrimination with the Equal Employment Opportunity Commission (“EEOC”) and obtaining a notice of right to sue from the EEOC. *See Karaba v. DSI Sec. Servs.*, No. 2:16-cv-664-FtM-99MRM, 2017 U.S. Dist. LEXIS 21069, at *2 (M.D. Fla. Feb. 14, 2017). To state a claim under Title VII, a plaintiff must plead sufficient facts to show she has exhausted her administrative remedies pursuant to Title VII. A failure to plead exhaustion of administrative remedies results in dismissal of the complaint. *See Francois v. Dist. Bd. of Trs. of Broward Coll.*, No. 24-61196-CIV-DAMIAN, 2025 U.S. Dist. LEXIS 133510, at *8-9 (S.D. Fla. June 23, 2025) (“Because Plaintiff failed to allege compliance with any of the Title VII pre-suit exhaustion requirements, dismissal is appropriate on this basis alone.”) (citing *Tillery v. U.S. Dep’t of Homeland Sec.*, 402 F. App’x 421, 425-26 (11th Cir. 2010) (upholding trial court’s dismissal of Title VII

retaliation claim based exclusively on plaintiff's failure to plead exhaustion of administrative remedies)).

Plaintiff's Fourth Amended Complaint is entirely devoid of any allegation that she exhausted administrative remedies pursuant to Title VII. Accordingly, Counts I, II, III, and XI should be dismissed.

VII. PLAINTIFF'S GENDER DISCRIMINATION CLAIM IN COUNT I FAILS TO STATE A CLAIM UNDER TITLE VII.

In Count I, Plaintiff purports to assert a claim of gender discrimination under Title VII against Amentum. Count I, however, fails to state a claim of gender discrimination because (1) Plaintiff fails to plead an actionable adverse employment action, and (2) Plaintiff fails to plead any factual allegations (as compared to conclusory assertions) that any purported conduct was taken because of her gender.

To state a claim of gender discrimination under Title VII, Plaintiff must allege: (1) she belongs to a protected class; (2) she was subjected to an adverse employment action; (3) she was qualified to perform the job in question; and (4) she was treated less favorably than a similarly situated employee outside her protected class. *Lewis v. City of Union City, Ga.*, 918 F.3d 1213, 1220-21 (11th Cir. 2019). "To sufficiently allege a Title VII discrimination claim, an employee 'must show some harm respecting an identifiable term or condition of employment.'" *Shed v. Univ. of S. Fla. Bd. of Trs.*, No. 23-13746, 2025 U.S. App. LEXIS 182618, at *11 (11th Cir. May 30, 2025) (quoting *Muldrow v. City of St. Louis, Missouri*, 601 U.S.

346, 354-55 (2024)). “The Supreme Court has stressed that Title VII provides no protection against ‘those petty slights or minor annoyances that often take place at work and that all employees experience.’” *Ricks v. Indyne, Inc.*, 552 F. Supp. 3d 1248, 1254 (N.D. Fla. 2021) (quoting *Harrison v. Belk Inc.*, 748 F. App’x 936, 943 (11th Cir. 2018)).

Here, Plaintiff fails to allege any actionable adverse employment action. Instead, she relies on vague references to being treated “less favorably” in terms of “job assignments, evaluations, and disciplinary actions.” Plaintiff, however, does not allege any facts to explain in what way she was treated “less favorably” or what “job assignments,” “evaluations,” or “disciplinary actions” are at issue. Further, Plaintiff has failed to allege any facts to show a change in the terms, conditions, or privileges of employment. As such, she has failed to satisfy this basic pleading requirement. *See Davis v. Orange Cty.*, No. 6:22-cv-2222-PGB-UAM, 2025 U.S. Dist. LEXIS 134506 (M.D. Fla. Mar. 30, 2025) (“Even if Plaintiff alleged ‘some harm,’ Plaintiff fails to allege ‘some harm respecting an identifiable term or condition of employment.’”). Likewise, Plaintiff’s allegation of an “uneven work load” (Doc. 27 at 3-4) does not constitute an adverse employment action under Title VII. *See Gillespie v. City of Orlando*, No. 6:17-cv-635-Orl-41GJK, 2018 U.S. Dist. LEXIS 19194, at *8 (M.D. Fla. Feb. 6, 2018) (“Plaintiff’s allegations of increased workload, without more, are insufficient to demonstrate that he suffered an adverse

employment action”). Similarly, Plaintiff’s allegation that she was told not to contact a co-worker (Doc. 27 at 4) is also not an actionable adverse employment action. This is just the kind of “petty slight” courts have found do not give rise to a cause of action.

Additionally, Plaintiff’s vague and conclusory assertion she was treated “less favorably” than similarly situated male employees should be disregarded because Plaintiff does not allege any facts to identify who her purported comparators were, how they were allegedly similarly situated to her, or what treatment they received that differed from hers. The Eleventh Circuit requires plaintiffs to show that comparators are “similarly situated in all material respects.” *Gillespie*, 2018 U.S. Dist. LEXIS 19194 at *8 (“The comparators need not be ‘identical’ to the plaintiff but for their gender, but they must be ‘similarly situated in all material respects.’”) (quoting *Lewis*, 918 F.3d at 1227-28). Plaintiff has not alleged any facts establishing that any male employee was similarly situated to her, nor has she described the circumstances of their job assignments, evaluations, or discipline, or explained how any male employee was allegedly treated more favorably than she was.

Further, Count I omits any factual allegations sufficient to give rise to an inference of discriminatory motive. Rather, Plaintiff puts forth nothing more than vague and conclusory assertions that supervisors “harassed and tried to bully Plaintiff” into continuing with the workload and their alleged conduct “could only

be attributed to gender-based discrimination.” (Doc. 27 at 4) Such conclusory assertions, unsupported by factual allegations connecting any purported conduct to discriminatory animus, are insufficient to state a claim for gender discrimination.

Because Plaintiff has failed to plead facts supporting the essential elements of a Title VII gender discrimination claim, Count I should be dismissed.

VIII. PLAINTIFF’S RETALIATION CLAIM IN COUNT II FAILS TO STATE A CLAIM UNDER TITLE VII.

In Count II, Plaintiff purports to assert a claim of retaliation under Title VII against Amentum. Count II fails to state a claim of retaliation because (1) Plaintiff fails to plead a materially adverse employment action, and (2) Plaintiff fails to plead any factual allegations (as compared to conclusory assertions) that she engaged in any statutorily protected conduct or a causal connection between any purported statutorily protected conduct and a materially adverse employment action.

To state a claim of retaliation under Title VII, Plaintiff must allege: (1) she engaged in statutorily protected conduct, (2) she was subjected to an adverse employment action, and (3) there was a causal relationship between the two events. *Tolar v. Bradley Arant Boult Cummings, LLP*, 997 F.3d 1280, 1289 (11th Cir. 2021). To be actionable, an employment action must be materially adverse as viewed by a reasonable person. *See Robinson v. Holman*, No. 23-11735, 2024 U.S. App. LEXIS 13690, at *4-5 (11th Cir. June 6, 2024) (quoting *Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 68 (2006)). In other words, the employment action must be

serious enough to dissuade a reasonable employee from engaging in protected conduct. *Id.* (quoting *Muldrow*, 601 U.S. at 348 (2024)).

Here, Plaintiff fails to allege any materially adverse employment action. Instead, she relies on vague references to “isolation, denial of opportunities, and the creation of intolerable working conditions.” Plaintiff, however, does not allege any facts to explain in what way she was isolated, denied “opportunities,” or experienced “intolerable working conditions.” As such, she has failed to satisfy this basic pleading requirement. *See Robinson v. HCA Healthcare Servs. Fla., Inc.*, No. 8:24-cv-275-TPB-AEP, 2024 U.S. Dist. LEXIS 153308, at *4 (M.D. Fla. Aug. 27, 2024) (“[A] plaintiff must show a material adversity — Title VII . . . does not set forth a general civility code for the American workplace, and petty slights, minor annoyances, and simple lack of good manners will not rise to the level of materially adverse actions for retaliation purposes.”) (internal quotations omitted) (quoting *Burlington N. & Santa Fe Ry. Co.*, 548 U.S. at 67 (2006)).

Additionally, Count II does not allege any facts demonstrating she engaged in protected conduct under Title VII. There are two types of protected conduct under Title VII. The Participation Clause covers an employee who has “made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing.” 42 U.S.C. § 2000e-3(a). Plaintiff’s Fourth Amended Complaint does not include any such allegations. The Opposition Clause covers an employee who has

opposed any practice which is an unlawful employment practice as delineated by Title VII. 42 U.S.C. § 2000e-3(a). Plaintiff fails to allege she opposed an unlawful employment practice.

Here, other than a conclusory assertion that she “engaged in protected activity by reporting discrimination, safety violations, and noncompliance,” Plaintiff fails to allege any facts connecting her alleged report to an unlawful employment practice related to her gender or other characteristic covered by Title VII (*i.e.*, race, color, gender, national origin, or religion). Instead, she alleges that she reported “safety, quality, and compliance violations to management,” “noncompliance in turnover logs, locker inspections, and process control documentation,” and “fail[ure] to perform required tasks and falsifi[cation of] information in turnover logs.” (Doc. 27 at 2) However, for a complaint to constitute protected conduct, “the employee must, at the very least, communicate her belief that discrimination is occurring to the employer. It is not enough for the employee merely to complain about a certain policy or certain behavior of co-workers and rely on the employer to infer that discrimination has occurred.” *Webb v. R&B Holding Co.*, 992 F. Supp. 1382, 1389 (S.D. Fla. 1998). Courts have consistently required an employee’s complaint clearly put the employer on notice of a violation of the law. *See Marcelin v. Eckerd Corp. of Fla., Inc.*, No. 8:04-CV-491-T-17MAP, 2006 U.S. Dist. LEXIS 18097, at *28 (M.D. Fla. Apr. 10, 2006). Furthermore, generalized complaints about working

conditions, without reference to unlawful discrimination, cannot form the basis for a retaliation claim. *Long v. Russell Cnty. Comm’n*, No. 3:09-CV-90-WKW [WO], 2010 U.S. Dist. LEXIS 136618, at *49-50 (M.D. Ala. Dec. 27, 2010). Absent any factual allegations tying her alleged protected conduct to her gender or other Title VII-protected characteristic, Plaintiff’s retaliation claim is insufficiently pled and should be dismissed.

Furthermore, Count II does not allege any facts to show a causal connection between any protected conduct and any alleged adverse employment action. For instance, Plaintiff has not alleged any facts showing the decision maker responsible for her termination was aware of her purported protected conduct because, in part, the Fourth Amended Complaint does not even identify who the decision maker was. “To establish the causal connection element, the plaintiff must demonstrate that ‘the decision maker was aware of the protected conduct at the time of the adverse employment action.’” *Willis v. Publix Super Mkts., Inc.*, 619 F. App’x 960, 962 (11th Cir. 2015) (quoting *Brungart v. BellSouth Telecomms., Inc.*, 231 F.3d 791, 799 (11th Cir. 2000)). Moreover, Plaintiff alleges she was terminated “after being told that she needed to return to work.” (Doc. 27 at 4) This is not retaliation. Additionally, Plaintiff blames her termination on her Union and Union Representative. (Doc. 27 at 4) This is not Amentum and Amentum is not responsible or liable for acts of

Plaintiff's Union. Accordingly, Plaintiff's retaliation claims in Count II should be dismissed.

IX. PLAINTIFF'S BARE ALLEGATIONS IN COUNT III FAIL TO STATE A CLAIM OF HOSTILE WORK ENVIRONMENT ("HWE") UNDER TITLE VII.

Plaintiff's HWE claims against Amentum in Count III should be dismissed. The allegations in the Fourth Amended Complaint fall woefully short of alleging harassment that was sufficiently severe or pervasive to alter the terms and conditions of Plaintiff's employment and create a discriminatorily abusive working environment. Plaintiff also fails to make any connection between her gender or purported protected conduct and the alleged harassment.

To state an HWE claim, Plaintiff must allege:

(1) that [s]he belongs to a protected group; (2) that [s]he has been subject to unwelcome harassment; (3) that the harassment must have been based on a protected characteristic of the employee . . .; (4) that the harassment was sufficiently severe or pervasive to alter the terms and conditions of employment and create a discriminatorily abusive working environment; and (5) that the employer is responsible for such environment under a theory of either vicarious or direct liability.

Miller v. Kenworth of Dothan, Inc., 277 F.3d 1269, 1275 (11th Cir. 2002). Courts look at multiple factors when determining whether the plaintiff's allegations satisfy the "severe or pervasive" requirement: "(1) the frequency of the conduct; (2) the severity of the conduct; (3) whether the conduct is physically threatening or humiliating, or a mere offensive utterance; and (4) whether the conduct unreasonably

interferes with the employee’s job performance.” *Mendoza v. Borden, Inc.*, 195 F.3d 1238, 1245 (11th Cir. 1999) (citations omitted). The requirement that the alleged harassment be “severe or pervasive” is a high standard that must amount to “extreme” discriminatory conduct that mere unpleasant conduct cannot satisfy. *See Godoy v. Habersham Cnty*, 211 F. App’x 850, 854 (11th Cir. 2005).

Count III is devoid of any allegations that the purported conduct was frequent, severe, physically threatening, humiliating, or that it unreasonably interfered with Plaintiff’s job performance. Instead, Plaintiff asserts only that she was allegedly yelled and cursed at on a single occasion; she was told that she cursed, too, on two occasions; and she received disciplinary action for cursing. (Doc. 27 at 4) Under well-established Eleventh Circuit precedent, these isolated remarks - wholly unconnected to Plaintiff’s gender or alleged protected conduct – cannot, as a matter of law, support a viable HWE claim. *See Uppal v. Hosp. Corp. of Am.*, 482 F. App’x 394, 397 (11th Cir. 2012) (affirming dismissal of plaintiff’s sex-based HWE claim because “a single incident of harassing conduct cannot support a hostile work environment claim”); *Pratt v. Compass Grp. USA, Inc.*, No. 24-CV-81308-RLR, 2024 U.S. Dist. LEXIS 212102, at *3–*4 (S.D. Fla. Nov. 21, 2024) (dismissing sex-based HWE claim where the plaintiff alleged only “one offensive remark with specificity”). Far more serious allegations have been dismissed for failure to state an HWE claim. *See, e.g., Walsh v. City of Ocala*, No. 5:18-cv-402-Oc-30PRL, 2019

U.S. Dist. LEXIS 122484, at *12–13 (M.D. Fla. June 17, 2019) (dismissing complaint containing allegations of eight episodes in which, among other things, a supervisor made explicit sexual comments and wrestled with a female employee to get her cell phone to see nude photographs of her and “shoved her face in his groin simulating her performing oral sex on him”); *Tiberi v. Cent. Broward Water Control Dist.*, No. 22-60766-CIV-SINGHAL, 2023 U.S. Dist. LEXIS 53976, at *11-*12 (S.D. Fla. Mar. 28, 2023) (dismissing sex-based HWE claim alleging continued comments over a span of approximately six months and collecting cases of courts dismissing HWE claims based on conduct that was far more serious).

Additionally, Count III is fatally deficient because it fails to allege any facts that plausibly connect the purported harassment to her gender or protected conduct. Count III contains no statements, conduct, or circumstances suggesting that the alleged treatment was motivated by her gender or protected conduct. The only references Plaintiff makes that could even be construed as gender-related are that (1) she was allegedly yelled and cursed at “in the presence of male employees,” and (2) she was allegedly denied access to written witness statements “collected from the men involved.” (Doc. 27 at 4) Such allegations – which show essentially nothing more than Plaintiff worked with male employees - establishes, or even implies, that her gender was the basis for the alleged conduct.

Beyond these meager allegations, Plaintiff does nothing more than assert “threadbare recitals” of the elements of the cause of action and “mere conclusory statements.” This is wholly insufficient to withstand a motion to dismiss. Because Plaintiff’s bare allegations cannot form the basis for a HWE claim as a matter of law, Count III should be dismissed *with prejudice*.

X. PLAINTIFF’S DEFAMATION CLAIM IN COUNT IV SHOULD BE DISMISSED WITH PREJUDICE.

Count IV is only pled against Plaintiff’s co-workers, Velasquez and Thomas. Plaintiff alleges that, during a disciplinary meeting, Thomas said *to Plaintiff* that she took unauthorized leave from work. Plaintiff also alleges that she was accused of cursing at Velasquez. Finally, she claims “false statements” were “circulated among Amentum management [and] placed in Plaintiff’s personnel file.” (Doc. 27 at 5) These allegations fail to state a claim of defamation because Plaintiff does not – and cannot - allege publication *to a third party*. Accordingly, Count IV should be dismissed *with prejudice*.

Under Florida law, defamation requires “the unprivileged publication of false statements which naturally and proximately result in injury to another.” *Hoch v. Loren*, 273 So. 3d 56, 57 (Fla. 4th DCA 2019) (quoting *Wolfson v. Kirk*, 273 So. 2d 774, 776 (Fla. 4th DCA 1973)). “Publication of defamatory matter is communication of the statement *to a third person*.” *Id.* (emphasis supplied). Thus, “[a] defamatory statement does not become actionable . . . until it is published or communicated to

a third person; *statements made to the person alleging the defamation do not qualify.*” *Am. Airlines, Inc. v. Geddes*, 960 So. 2d 830, 833 (Fla. 3d DCA 2007) (emphasis supplied). Additionally, Florida courts have consistently held that communications between managerial employees of the same corporation do not constitute publication to a third party. *Hoch*, 273 So. 3d at 58 (“Florida courts have found no publication where . . . the defamatory statement was made by one managerial employee of the corporation to another.”). Likewise, “a communication made in good faith on any subject matter by one having an interest therein, or in reference to which he had a duty, is privileged if made to a person having a corresponding interest or duty.” *Am. Airlines, Inc.*, 960 So. 2d at 833. This black letter principle of defamation law has repeatedly been applied to hold that statements about an employee were not actionable where, as here, they were allegedly shared only with coworkers who either participated in the investigation or had a legitimate interest in disciplinary matters. *See id.*

A cursory review of the factual allegations pled in support of Count IV clearly shows that Plaintiff has not alleged publication to a third party. Rather, she alleges that statements were made to her, “circulated among Amentum management,” and placed in her personnel file. Without publication to a third party, Plaintiff cannot state a claim of defamation as a matter of law. Accordingly, dismissal *with prejudice* is warranted.

XI. PLAINTIFF’S INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (“IIED”) CLAIM IN COUNT V SHOULD BE DISMISSED WITH PREJUDICE BECAUSE PLAINTIFF FAILS TO PLEAD “OUTRAGEOUS CONDUCT.”

Plaintiff’s allegations in Count V fall woefully short of Florida’s high standard for pleading an IIED claim. To state an IIED claim, Plaintiff must allege that: (1) the conduct was intentional or reckless; (2) the conduct was outrageous; (3) the conduct caused emotional distress; and (4) the emotional distress was severe. *Williams v. Worldwide Flight Servs.*, 877 So. 2d 869, 870 (Fla. 3d DCA 2004) (citing *De La Campa v. Grifols Am., Inc.*, 819 So. 2d 940, 943 (Fla. 3d DCA 2002)). “Outrageous conduct is conduct that is ‘so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency.’” *Id.* (quoting *Metro. Life Ins. Co. v. McCarson*, 467 So. 2d 277, 278–79 (Fla. 1985)). The issue of whether a defendant’s activities “rise to the level of being extreme and outrageous so as to permit a claim for intentional infliction of emotional distress is a legal question in the first instance for the court to decide as a matter of law.” *Rivera v. Am. Mem. Ctrs., Inc.*, No. 05-CV-21514, 2006 U.S. Dist. LEXIS 78364, at *11 (S.D. Fla. Oct. 27, 2006) (citing *Baker v. Fla. Nat’l Bank*, 559 So. 2d 284, 287 (Fla. 4th DCA 1990)).

“While there is no exhaustive or concrete list of what constitutes outrageous conduct, Florida common law has evolved an extremely high standard.” *Carey v. O’Reilly Auto Stores, Inc.*, No. 18-cv-81588, 2019 U.S. Dist. LEXIS 92487, at *25 (S.D. Fla. May 31, 2019) (quoting *Garcia v. Carnival Corp.*, 838 F. Supp. 2d 1334,

1339 (S.D. Fla. 2012)). Notably, “[a]llegations of verbal harassment, without significant physical attack, are insufficient to plead an intentional infliction of emotional distress claim.” *Id.* (quoting *Delk v. Bank of Am., N.A.*, No. 5:14-cv-469, 2016 U.S. Dist. LEXIS 1149, at *7 (M.D. Fla. Jan. 6, 2016) (citing *Bakar v. Bryant*, No. 13-21927-CIV, 2013 U.S. Dist. LEXIS 144972, at *2–3 (S.D. Fla. Oct. 7, 2013))). Indeed, the “touchstone” of an IIED claim is “the presence of relentless physical, as well as verbal, harassment.” *Id.* (quoting *DeShiro v. Branch*, No. 96-800-CIV-T-17E, 1996 U.S. Dist. LEXIS 16946, at *3 (M.D. Fla. Nov. 4, 1996)).

A cursory review of the allegations pled in support of Count V shows they are plainly insufficient to state a claim of IIED. Plaintiff’s claim for IIED is only pled against her co-workers, the individual defendants. She asserts that they allowed “Velasquez to curse at and demean Plaintiff,” accused her of cursing, fabricated “claims that Plaintiff took unauthorized leave,” conducted a disciplinary meeting in which Thomas, Hughes, and Velasquez “repeated false accusations” while Gunn “remained silent,” refused to provide Plaintiff with copies of witness statements, and used “falsehoods” as a basis for discipline and termination. (Doc. 27 at 5-6) Even taken as true, these allegations do not rise to the level of “outrageous conduct” required under Florida law to sustain an IIED claim. *See, e.g., Leuzzi v. Fawcett Mem’l Hosp., Inc.*, No. 2:25-cv-396-SPC-DNF, 2025 U.S. Dist. LEXIS 481857, at *13 (M.D. Fla. Oct. 16, 2025) (regarding an IIED claim: “Florida courts have found

allegations of false statements insufficient to state a claim.”); *Williams*, 877 So. 2d at 870-71 (finding that the alleged conduct, including repeated use of racial slurs, issuance of unfounded disciplinary actions, threats of termination, and placement in hazardous work assignments, fell short of meeting the threshold of extreme and outrageous behavior required to sustain an IIED claim).

Furthermore, it is not clear which individual defendant is alleged to have engaged in which conduct. In evaluating whether Plaintiff can state a claim of IIED against each of the individual defendants, the Court should look at the allegations against that individual defendant and determine whether Plaintiff has alleged “outrageous conduct” as to that individual defendant. She plainly has not.

Finally, Count V should be dismissed because Plaintiff fails to allege “severe emotional distress.” “A plaintiff attempting to allege the ‘severe emotional distress’ element of an IIED claim must allege that [s]he suffered distress so severe that no reasonable [person] could be expected to endure it.” *Grasso v. Det. Tyler Varner*, No. 4:21-cv-310-WS-MJF, 2023 U.S. Dist. LEXIS 41655, at *23–24 (N.D. Fla. Jan. 30, 2023), report and recommendation adopted by No. 4:21cv310-WS/MJF, 2023 U.S. Dist. LEXIS 40254, at *1 (N.D. Fla. Mar. 10, 2023). Here, Plaintiff alleges that she experienced “humiliation, anxiety, sleeplessness, and emotional trauma.” This is insufficient to meet the “severe emotional distress” element of an IIED claim.

For the foregoing reasons, Count V should be dismissed *with prejudice*.

XII. COUNT VI SHOULD BE DISMISSED WITH PREJUDICE BECAUSE PLAINTIFF’S ALLEGATIONS FAIL TO STATE A CIVIL CONSPIRACY CLAIM.

Plaintiff’s civil conspiracy claim, which is only pled against the individual defendants, is legally insufficient and should be dismissed *with prejudice*. Plaintiff’s claim rests entirely on speculation and conclusory assertions. Plaintiff has failed to allege any facts to show an unlawful act or underlying tort or any agreement between the individual defendants. This is because no such facts exist.

“A civil conspiracy requires: (a) an agreement between two or more parties, (b) to do an unlawful act or to do a lawful act by unlawful means, (c) the doing of some overt act in pursuance of the conspiracy, and (d) damage to plaintiff as a result of the acts done under the conspiracy.” *UTC Indus. v. Presidential Fin. Corp.*, 976 So. 2d 92, 94 (Fla. 3d DCA 2008) (quoting *Raimi v. Furlong*, 702 So. 2d 1273, 1284 (Fla. 3d DCA 1997)). Thus, “an actionable conspiracy requires an *actionable* underlying tort or wrong.” *Raimi*, 702 So. 2d at 1284 (emphasis supplied); *see also Plastiquim, S.A. v. Odebrecht Constr., Inc.*, 337 So. 3d 1270, 1273 (Fla. 3d DCA 2022). Additionally, a civil conspiracy “requires the combination of two or more persons—a meeting of two independent minds intent on one purpose.” *Cedar Hills Props. Corp. v. E. Fed. Corp.*, 575 So. 2d 673, 676 (Fla. 1st DCA 1991). Thus, “[i]n bringing a claim of civil conspiracy, the plaintiff ‘must provide some factual basis for the legal conclusion that a conspiracy existed.’” *Williams v. Michelin N. Am.*,

Inc., No. 6:04-cv-815-Orl-31DAB, 2005 U.S. Dist. LEXIS 24427, at *7 (M.D. Fla. Oct. 21, 2005) (“Thus, plaintiffs ‘may not simply aver that a conspiracy existed; [the defendant] must be put on notice as to the nature of the conspiracy alleged.’”).

Here, Plaintiff has not identified, nor can she plead, any actionable tort to support her civil conspiracy claim. Rather, she asserts, in a vague and conclusory manner, that the individual defendants “combined for the purpose of injuring Plaintiff’s reputation and employment standing” and “conspired to make the workplace intolerable and unbearable.” (Doc. 27 at 6) These allegations do not, as a matter of law, constitute any tort or unlawful act. To the extent Plaintiff is attempting to recast her Title VII claims as a civil conspiracy so that she can assert her Title VII claims against the individual defendants, this should be rejected. Title VII does not provide for individual liability. *See Stephens v. Univ. of Fla.*, No. 1:12-cv-94-MP-GRJ, 2012 U.S. Dist. LEXIS 65722, at *6 (N.D. Fla. May 10, 2012). Plaintiff should not be permitted to engage in an end-run around the clear legislative intent to limit liability for alleged discrimination and retaliation to corporate defendants.

Furthermore, Plaintiff has not alleged any facts to support her baseless contention that all of the individual defendants combined together or came to an agreement to carry out a single purpose. Rather, Plaintiff’s allegations merely assert that “[t]he individual Defendants combined” and “[a]ll defendants in this case have conspired.” (Doc. 27 at 6) Even accepting these conclusory allegations as true

(which the Court is not required to do), these allegations describe nothing more than corporate employees acting within the scope of their employment. Under the intercorporate conspiracy doctrine, such conduct cannot form the basis of a civil conspiracy claim because the alleged actors are not independent minds but agents of a single corporate entity. “Simply put, under the doctrine, a corporation cannot conspire with its employees, and its employees, when acting in the scope of their employment, cannot conspire among themselves.” *Williams*, 2005 U.S. Dist. LEXIS 24427 at *8 (quoting *McAndrew v. Lockheed Martin Corp.*, 206 F.3d 1031, 1036 (11th Cir. 2000)) (“Where corporate agents are acting within the scope of their employment, their actions ‘are attributed to the corporation itself, thereby negating the multiplicity of actors needed for a conspiracy.’” (quoting *HRCC, Ltd. v. Hard Rock Cafe Int’l (USA), Inc.*, 302 F. Supp. 3d 1319, 1325 (M.D. Fla. 2016))). Thus, the intercorporate conspiracy doctrine bars Plaintiff’s civil conspiracy claim.

Because Plaintiff does not – and cannot – allege an underlying actionable tort and does not – and cannot – overcome the intercorporate conspiracy doctrine, Plaintiff has failed to state a viable civil conspiracy claim and Count VI should be dismissed *with prejudice*.

XIII. COUNT VII SHOULD BE DISMISSED WITH PREJUDICE BECAUSE PLAINTIFF’S ALLEGATIONS FAIL TO STATE A NEGLIGENT SUPERVISION CLAIM.

Plaintiff’s negligent supervision claim in Count VII is asserted only against Amentum. The claim rests entirely on allegations that Thomas, Velasquez, and Xander “perpetuated gender-based discrimination.” (Doc. 27 at 6) Plaintiff identifies no actionable tort recognized under Florida law in support of her negligent supervision claim. Critically, “[a] claim for negligent supervision and retention must be based on an injury resulting from a tort recognized under Florida law.” *Mighty v. Genesis Eldercare Rehab. Servs.*, No. 9:18-cv-80440-WPD, 2018 U.S. Dist. LEXIS 20117, at *5 (S.D. Fla. May 23, 2018) (citation omitted). Discrimination is not recognized as an independent tort that can support a claim of negligent supervision. *Id.* (citing *Freese v. Wuesthoff Health Sys., Inc.*, 2006 WL 1382111, at *8 (M.D. Fla. May 19, 2006)) (granting the defendant’s motion to dismiss the plaintiff’s negligent retention and negligent supervision claims where the underlying allegations asserted that employees engaged in discrimination in violation of Title VII). Because discrimination cannot serve as the underlying tort for a negligent supervision claim, Count VII fails as a matter of law and should be dismissed *with prejudice*.

XIV. COUNT VIII FAILS TO STATE VIABLE CLAIMS.

Count VIII improperly attempts to assert both a “whistleblower” claim and a “violation of public policy” claim against all Defendants within a single count. (Doc.

27 at 7) Such commingling of claims in a single count is impermissible. *Weiland v. Palm Beach Cnty. Sheriff's Off.*, 792 F.3d 1313, 1323 (11th Cir. 2015).

Additionally, both claims should be dismissed for failure to state a claim. With respect to the purported claim of “violation of public policy,” such a claim is not viable under Florida law. Simply put, Florida does not recognize a public policy exception to at-will employment. *See Hartley v. Ocean Reef Club, Inc.*, 476 So. 2d 1327, 1329 (Fla. 3d DCA 1985); *Houston v. Mark Dunning Indus. Inc.*, No. 3:25cv1338-TKW-HTC, 2025 U.S. Dist. LEXIS 566774 (N.D. Fla. Nov. 5, 2025) (“there is no common law claim under Florida law for wrongful termination of an at-will employee”). Accordingly, this claim against all Defendants should be dismissed *with prejudice*.

With respect to the purported claim of “whistleblower retaliation” asserted against all Defendants, Plaintiff fails to identify any statutory basis or legal authority under which she seeks relief. Rather, she merely alleges that she was retaliated against in violation of “applicable whistleblower protections.” (Doc. 27 at 7) Thus, Plaintiff has left Defendants and the Court to guess the basis for her claim. There are many “whistleblower protections” at both the federal and state level. Without additional information, Defendants and the Court are unable to discern the contours of her claim and whether she has sufficiently pled factual allegations to state a claim. Further, Plaintiff has failed to allege any law which she contends all Defendants

violated; the basis for liability against the individual defendants; the purported retaliatory actions; or a causal connection between her purported “whistleblower” conduct and any adverse action. For all these reasons, this claim against all Defendants should be dismissed.

XV. PLAINTIFF’S BREACH OF CONTRACT CLAIM IN COUNT IX SHOULD BE DISMISSED WITH PREJUDICE.

Plaintiff’s breach of contract claim in Count IX fails to allege the existence of a contract between Plaintiff and any of the named defendants: Amentum, Xander, Hughes, and Gunn. The only documents Plaintiff references as potential “contracts” are “Human Resources Policies” and a “Collective Bargaining Agreement.” (Doc. 27 at 7) Neither of these documents can serve as the basis for her breach of contract claim against Amentum or the named individual defendants. Accordingly, Count IX should be dismissed *with prejudice*.

With respect to “Human Resources Policies,” “Florida law has long recognized that statements in employee handbooks, policy statements, or procedure manuals do not constitute the terms of a contract of employment and thus do not give rise to enforceable contract rights.” *Turton v. Singer Asset Fin. Co.*, 120 So. 3d 635, 636 (Fla. 4th DCA 2013); *see also Quaker Oats Co. v. Jewell*, 818 So. 2d 574, 576-77 (Fla. 5th DCA 2002) (policy statements contained in employment manuals do not give rise to enforceable contract rights in Florida); *Hernandez v. Hypower, LLC*, No. 24-20207-CIV-MARTINEZ, 2025 U.S. Dist. LEXIS 333279, at *5 (S.D.

Fla. Mar. 11, 2025) (“[I]t is well-settled that employment manuals, such as the Handbook, are not enforceable contracts.”); *Sleit v. Ricoh Corp.*, No. 8:07-cv-724-T-23TBM, 2007 U.S. Dist. LEXIS 64581, 2007 WL 2565967, at *1 (M.D. Fla. Aug. 31, 2007) (“Employee manuals such as handbooks and memoranda—even those that include compensation policies—are unilateral policy statements and do not contractually bind employers.”). Accordingly, Plaintiff’s reliance on “Human Resources Policies” cannot sustain a breach of contract claim.

With respect to the “Collective Bargaining Agreement,” Plaintiff’s claim fails for many reasons. First, the Collective Bargaining Agreement is not a contract between Plaintiff and any of the Defendants named in Count IX. Indeed, Plaintiff’s allegations in Count IX make this point. She alleges the “Union” violated the Collective Bargaining Agreement. However, the “Union” is not a party to this lawsuit nor is any of the named Defendants responsible for alleged acts or omissions of the “Union.”

Second, any claim premised on the terms of the Collective Bargaining Agreement is preempted by federal law. Plaintiff alleges that “the Union’s failure to act after receiving Plaintiff’s written request for representation (*Exhibit G*) violated the grievance procedures incorporated into the Collective Bargaining Agreement.” (Doc. 27 at 7) “[A] state law claim is preempted by [federal labor law] ‘when resolution of [the] state-law claim is substantially dependent upon analysis of the

terms of an agreement made between the parties in a labor contract” *Osan v. Verizon Fla. LLC*, No. 8:15-cv-104-T-36TGW, 2016 U.S. Dist. LEXIS 62295, at *4 (M.D. Fla. May 11, 2016) (quoting *Allis-Chalmers Corp. v. Lueck*, 471 U.S. 202, 220 (1985)). Here, Plaintiff alleges she was “deprived . . . of the contractual right to representation” (Doc. 27 at 7), which is squarely a claim under the Collective Bargaining Agreement and federal labor law.

Plaintiff has not identified any independent contract between her and any of the Defendants named in Count IX - nor can she. Because Plaintiff has failed to identify any valid and enforceable contract, Count IX fails to state a claim for breach of contract and should be dismissed *with prejudice*.

XVI. COUNT X FAILS TO STATE VIABLE CLAIMS.

Count X is duplicative of Count VIII and, therefore, fails to state a cognizable claim for the same reasons as Count VIII fails. Count X appears to improperly attempt to assert a “violation of public policy” claim, a whistleblower claim, and a Title VII claim against Amentum, Xander, Hughes, Gunn, and Thomas within a single count. (Doc. 27 at 8) Such commingling of claims in a single count is impermissible. *Weiland*, 792 F.3d at 1323 (11th Cir. 2015).

Additionally, all claims in Count X should be dismissed for failure to state a claim. First, Plaintiff frames the claim in Count X as “Wrongful Termination in Violation of Public Policy under Florida law.” (Doc. 27 at 8) Florida law, however,

does not recognize a common law claim for wrongful termination of an at-will employee. *See Houston*, 2025 U.S. Dist. LEXIS 566774 at *4 (“there is no common law claim under Florida law for wrongful termination of an at-will employee”); *Figueroa v. Wise United States Inc.*, No. 8:25-cv-02726-SDM-AEP, 2025 U.S. Dist. LEXIS 448341, at *5 (M.D. Fla. Nov. 4, 2025) (“Florida does not recognize a common-law cause of action for wrongful termination of an at-will employee.”); *Hartley*, 476 So. 2d at 1329 (same). Accordingly, this claim against Amentum, Xander, Hughes, Gunn, and Thomas should be dismissed *with prejudice*.

Second, to the extent Count X attempts to assert a claim under the Florida Whistleblower Act, Fla. Stat. § 448.101, *et seq.* (“FWA”), this claim should also be dismissed. Plaintiff alleges that she was terminated after she gave a deposition in an unrelated case against an unrelated defendant purportedly describing “similar discriminatory and retaliatory conduct” by the unrelated defendant. (Doc. 27 at 8) Count X, however, fails to allege any law which Plaintiff contends the named Defendants violated in this case; any factual allegations that she “[o]bjected to, or refused to participate in, any activity, policy, or practice of the employer [namely, Amentum] which is in violation of a law, rule, or regulation” or any other facts to support a claim under the FWA; the basis for liability against the named individual defendants; or a causal connection between her deposition in another unrelated case

against an unrelated defendant and her termination by Amentum. For all these reasons, any FWA claim in Count X should be dismissed.

Third, to the extent Count X attempts to assert a retaliation claim under Title VII, this claim should also be dismissed because it is duplicative of Counts II and XI and fails for the same reasons as Counts II and XI. Further, there is no individual liability under Title VII. *See Stephens*, 2012 U.S. Dist. LEXIS 65722 at *6.

XVII. PLAINTIFF’S RETALIATION CLAIM IN COUNT XI FAILS TO STATE A CLAIM UNDER TITLE VII.

In Count XI, Plaintiff purports to assert a claim of retaliation “based on post-deposition termination” under Title VII against Amentum. (Doc. 27 at 8) Count XI fails to state a claim of retaliation because Plaintiff fails to plead any factual allegations (as compared to conclusory assertions) that she engaged in statutorily protected conduct when she gave a deposition in another unrelated case or a causal connection between her deposition testimony in an unrelated case and her termination. At most, Plaintiff alleges that she “discussed discrimination, retaliation, and workplace misconduct by Amentum” during her deposition in an unrelated case against an unrelated defendant. (Doc. 27 at 3) Although she references “Deposition Transcript Excerpts” as Exhibit I to the Fourth Amended Complaint, no such excerpts were filed with the Fourth Amended Complaint. Other than these conclusory assertions, Plaintiff fails to allege any facts connecting her alleged deposition testimony to an unlawful employment practice related to her gender or

other characteristic covered by Title VII. Additionally, Plaintiff has not alleged any facts showing that the decision maker responsible for her termination was aware of her deposition testimony. This is a defect she cannot cure. Accordingly, Count XI should be dismissed because it fails to allege the essential elements of a Title VII retaliation claim.

XVIII. CONCLUSION

WHEREFORE, for the foregoing reasons, Defendants, Amentum Government Services Parent Holdings LLC, Clarence Xander, Janice Hughes, Heather Gunn, Dakota Thomas, Elias Velasquez, and Yusef Abdul-Jami, respectfully request this Court enter an Order granting this Motion to Dismiss Fourth Amended Complaint, dismissing Plaintiff's Fourth Amended Complaint against Defendants in its entirety, and awarding any other relief this Court deems just and proper, including attorneys' fees and costs to Defendants.

Certification of Compliance with N.D. Fla. L.R. 7.1(B) and (C)

Pursuant to N.D. Fla. L.R. 7.1(B) and (C), the undersigned conferred with Plaintiff on December 22, 2025 and Plaintiff opposes the relief requested herein.

Certification Compliance with N.D. Fla. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Motion and the supporting Memorandum of Law total **7990** words.

DATED this 23rd day of December, 2025.

Respectfully submitted,

JACKSON LEWIS P.C.
501 Riverside Ave., Suite 902
Jacksonville, Florida 32202
Telephone: (904) 638-2655
Facsimile: (904) 638-2656

By: /s/ Lindsay D. Swiger
Lindsay D. Swiger
Florida Bar No. 0045783
Lindsay.Swiger@jacksonlewis.com
Zackary A. Blanton
Florida Bar No. 1049172
Zackary.Blanton@jacksonlewis.com
Megan.Pina@jacksonlewis.com
JacksonvilleDocketing@jacksonlewis.com

Attorneys for Defendants

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 23rd day of December 2025, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson

[REDACTED]

Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger